

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

**COMPLAINANT’S REPLY IN FURTHER SUPPORT OF ITS
MOTION TO DISMISS RESPONDENTS’ AMENDED
COUNTERCLAIM**

Complainant Samsung Electronics America, Inc. (‘Complainant’ or ‘SEA’), by its undersigned attorneys, respectfully submits this Reply to Orient Overseas Container Line limited and OOCL (Europe) Limited (collectively, ‘OOCL’ or ‘Respondents’)’s Opposition to Complainant’s Motion to Dismiss OOCL’s Amended Counterclaim (Doc. 82; hereafter referred to as the ‘Opposition’) under 46 U.S.C. § 41102(a).

ARGUMENT

The Commission has already rejected OOCL’s theory that a disagreement over which party is responsible for demurrage and detention charges somehow transforms a contract dispute into a ‘fraud’ or ‘unjust or unfair device or means.’ However, OOCL’s Amended Counterclaim alleges nothing more. OOCL’s Amended Counterclaim (Doc. 69; ‘AMCC’) is substantively

indistinguishable from OOCL's Original Counterclaim, and should therefore also be dismissed, this time with prejudice.

In the same way that the Original Counterclaim failed to meet the Commission's pleading standard for a claim under 46 U.S.C. § 41102(a), the AMCC fails to do so as well. It also fails to plausibly allege that SEA knowingly and willfully engaged in wrongful conduct, or employed any fraud or concealment as an unjust or unfair device or means. Further amendment would clearly be futile and the Commission should dismiss the AMCC with prejudice.

A. OOCL's Amended Counterclaim Is Nearly Identical to the Counterclaim Dismissed by the Commission

OOCL insists the AMCC is different enough from the Original Counterclaim to survive dismissal. However, the AMCC still relies upon the same theory that the Commission has already rejected, and it adds no new facts to cure that fundamental defect. OOCL's Opposition to the Motion to Dismiss seeks to defend the minor and immaterial word-smithing that constitutes OOCL's amendment to its Original Counterclaim, but the reality is that those amendments are ultimately immaterial.

1. OOCL Edits, But Does Not Alter, Its Original Counterclaim

To the extent that the AMCC makes changes to the Original Counterclaim, those changes are primarily confined to Paragraphs 30-36, and 62-67. The bulk of those paragraphs consist of conclusory statements and a speculative conspiracy theory. However, such conclusory statements cannot be accepted as true, nor can "unwarranted inferences, unreasonable conclusions, or arguments." *SD3 LLC v. Black & Decker (U.S.) Inc.*, 801 F.3d 412, 422 (4th Cir. 2015). Indeed, the conclusory statements contained in those paragraphs are examples of "naked assertions devoid of further factual enhancement" that must be set aside in assessing the sufficiency of a complaint's allegations. *Id.* Further, a "conclusory allegation of agreement at

some unidentified point [also] does not supply facts adequate to show illegality.” *Id.*

Respondents alleged concealment, conspiracy, and deceit—and yet fail to plead any actual facts necessary to make such conclusions plausible.

2. OOCL’s Theory Remains the Same, but Shifts Focus from SEA’s Complaint, to SEA’s Demand Letter

The material change made by OOCL in response to the Commission’s dismissal of the Original Counterclaim was to remove the express reference to SEA’s complaint as an allegedly “unjust means,” and to allege instead that the allegedly “unjust means” employed by SEA was its “demanding refunds of charges properly imposed pursuant to the terms of the Service Contracts, and tariff provisions to which SEA was bound, and by demanding that OOCL waive future lawful charges” (AMCC at ¶ 65).

In its Opposition, OOCL states that the “essence of OOCL’s Counterclaim is that Samsung Electronics Co. Ltd. (“Samsung”) and some of its affiliates – including SEA (collectively the “Samsung entities”) – used deception and concealment to obtain from OOCL Service Contracts that gave the Samsung entities favorable rates ...” (Opp., Doc. 82, at 1).

OOCL spends considerable time in its Opposition addressing the alleged “deception” upon which it relies for its AMCC. Its recitation of the negotiation by Samsung Electronics Co. Ltd. (“SEC”) of the relevant service contract seeks to expand upon the allegations against SEA that OOCL makes in its AMCC at ¶ 66. OOCL then points to what it views as the key to its AMCC, the letter of October 7, 2022 from SEA complaining of OOCL’s imposition of demurrage and detention charges in violation of the Shipping Act (identified by OOCL as the “Demand Letter”).

The Counterclaim paraphrases the Demand Letter’s language, yet Respondents failed to attach the letter in support of its allegations. Considering the weight given by OOCL’s

allegations to the Demand Letter, OOCL's failure to include the Demand Letter with its AMCC is telling. In fact, the clear text of the letter refutes OOCL's mischaracterization. Accordingly, a copy of the Demand Letter is attached to this Reply as Exhibit 1.¹

In the Demand Letter, SEA demanded refunds of fees it had already paid but which it believes were assessed in violation of the Commission's rules on demurrage and detention charges. SEA then gave notice that, absent a refund, it would seek reparations before the Commission. SEA also stated that any additional fees paid going forward would be paid under protest and with a reservation of rights to challenge them. The letter did not demand payment of fees that had not yet been assessed, nor did it seek a waiver of future lawful charges. In short, it identified a legal dispute, invoked the governing statute, and preserved SEA's remedies subject to Commission adjudication. See Exhibit 1.

3. The Commission Has Already Dismissed OOCL's "Unjust Means" Theory

The Original Counterclaim alleged that the bringing of a complaint to the Commission was an "unjust means" proscribed by § 41102(a). The Commission readily rejected the notion that bringing a complaint to the Commission could be a violation of the Shipping Act (Doc. 66 at 19). In its attempt to repackage its theory, OOCL now alleges that stating an *intent* to bring a complaint to the Commission is a violation of the Shipping Act. That argument is equally as unsound as the original. As the Commission held, "that scenario seems less like the kind of fact-based fraud or concealment seen in successful cases and more akin to a disagreement about legal matters, which is not sufficient to support a section 41102(a) claim" (*Id.*).

¹ "When evaluating a motion to dismiss for failure to state a claim, the Commission considers the facts alleged in the complaint, documents attached to the complaint, documents incorporated by reference in, or integral to, the complaint, and matters subject to official notice." *Maher Terminal, LLC v. The Port Authority of New York and New Jersey*, FMC Dkt. No. 12-02, 2015 WL 9426189, at *1 n. 1 (FMC Dec. 18, 2015).

Respondents' decision to re-file essentially the same allegations as those previously dismissed evidences the frivolity of the claims that OOCL alleges and disregards the Commission's express warning that amendments must allege specific facts establishing fraud, concealment, or deceit. Having failed to do so, OOCL has failed to state a plausible claim under Section 41102(a) in the AMCC.

B. OOCL's Allegations Do Not Meet the Plausibility Standard

The Commission granted OOCL leave to amend with a warning: "it is not evident that the additional conduct OOCL has described [in the Original Counterclaim] would present a plausible claim under section 41102(a)." (Doc. 66 at 21). However, OOCL responds by insisting that a claim survives if it offers a plausible version of events, despite alternative explanations. (Opp., Doc. 82 at 8). That framing sidesteps the point that OOCL must plead nonconclusory facts that satisfy the element-specific requirements of the statute. Conclusory assertions are insufficient, as is mere speculation.

In an effort to suggest a loose standard of "plausibility," OOCL cites to *Banneker Ventures, LLC v. Graham*, in which the D.C. Circuit Court vacated the dismissal of the plaintiff's tort claims because the lower court reviewed the complaint at "too high a level of generality." 798 F.3d 1119, 1126 (D.C. Cir. 2015). However, OOCL overlooks the *Banneker* Court's explanation of the need to support a plausible theory with the adequate pleading of the fact-specific elements of a claim. The court explained that:

"...threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice, nor do we assume the truth of legal conclusions... Plausibility requires more than a sheer possibility that a defendant has acted unlawfully... A claim crosses from conceivable to plausible when it contains factual allegations that, if proved, would allow the court to draw the reasonable inference that the defendant is liable for the misconduct alleged."

Banneker Ventures, LLC v. Graham, 798 F.3d 1119, 1129 (D.C. Cir. 2015)(internal citations omitted).

The same is true of *Anderson News, LLC v. Am. Media, Inc.*² and *SD3 LLC v. Black & Decker (U.S.) Inc.*³, both of which the Opposition also relies on for its notion that a broad allegation may survive a motion to dismiss. Those decisions reiterate that Rule 8 of the Federal Rules of Civil Procedure requires well-pleaded facts, not bare conclusions, and that courts do not accept legal conclusions dressed up as allegations.

Applied here, OOCL's pleading fails. The Counterclaim does not allege who at SEA said what, when, or how SEA concealed anything at the service contract formation and does not provide the necessary factual allegations to state a plausible claim.

C. The Amended Counterclaim Lacks the Facts Required to Plead a § 41102(a) Claim.

It has been well-settled by the Commission that a Section 41102(a) claim requires factual allegations that: (1) a respondent acted knowingly and willfully; (2) directly or indirectly by a false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means; (3) to obtain or attempt to obtain ocean transportation at less than the rates or charges that would otherwise apply. *OC Int'l Freight, Inc.*, Dkt. No. 12-01, 2014 WL 5316336 at *4 (FMC July 31, 2014). The Commission has further explained that the device-or-means element demands conduct involving fraud or concealment of a factual

² “This Rule does not countenance pleadings that are conclusory, it requires factual allegations that are sufficient to give the defendant fair notice of what the claim is and the grounds upon which it rests...Rule 8(a) contemplates the statement of circumstances, occurrences, and events in support of the claim presented and does not authorize a pleader's bare averment that he wants relief and is entitled to it.” 680 F.3d 162, 182 (2d Cir. 2012).

³ “We do not, however, accept as true a legal conclusion as a factual allegation. Nor do we accept unwarranted inferences, unreasonable conclusions, or arguments. We can further set aside assertions devoid of further factual enhancement.” 801 F. 3d 412, 425 (4th Cir. 2015).

matter. *Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, 2025 WL 2207363, at *5 (FMC Jul. 30, 2025).

OOCL still does not plead such facts. The AMCC does not identify any statement by SEA at contract formation, any concealed fact, or any person who made a misrepresentation. OOCL identifies no shipment, invoice, location, free-time window, or actor to anchor its theories. The AMCC also does not quote the contract language that allegedly made SEA responsible for all store-door delay charges regardless of fault. If that language existed and mattered, OOCL would have pled it.

Although OOCL's AMCC has removed its prior references to SEA's initiation of a Complaint to the Commission as an allegedly "unjust or unfair device," the gravamen of the OOCL's claims remains principally the same. Respondents allege that SEA's Demand Letter—by requesting a refund for the disputed charges and further providing notice of SEA's intent to bring its dispute to the appropriate statutory forum for resolution—now constitutes the "unjust or unfair device" OOCL's 41102(a) claim. (*see* Doc. 69 at ¶¶ 65 and 67). This appears to be based on OOCL's understanding that it is *entitled* to its demurrage and detention fees and if OOCL issued the charges, they are rightful; any disagreement on that topic is not a good faith dispute, but rather must be an underhanded deception. ("Samsung entities reneged on their agreement to pay all detention, demurrage, and similar charges that were not caused by OOCL, beginning a campaign to claw back from OOCL all of the detention and demurrage and similar fees the Samsung entities paid to OOCL even though the Samsung entities had agreed to be responsible for such fees." – Opp., Doc. 82 at 2)

Pertinent to the leave granted by the Commission to amend the original Counterclaim was the Commission's holding that OOCL should be permitted "at least one chance to allege a

plausible claim” that can raise allegations related “to the making and performance of the service contracts themselves, specifically through Samsung and SEA’s alleged plan to obtain lower rates by agreeing to a certain allocation of responsibility for delays, [and] then taking a contrary position.” (Doc. 66 at 20). The AMCC has failed to answer the call of the opportunity that it was granted and should thus be dismissed.

1. OOCL fails to plead that SEA “knowingly and willingly” engaged in wrongful conduct under § 41102(a).

OOCL’s Opposition points to paragraphs 65 and 67 of the AMCC, claiming they satisfy the knowledge and willfulness element. (Opposition at 13). They do not. Paragraph 65 asserts that SEA’s Demand Letter (Exhibit 1) was an unjust or unfair device because it requested refunds of demurrage and detention that SEA believed were wrongfully charged under the service contracts. Paragraph 67 repeats the point and adds the bare conclusion that SEA both demanded refunds and refused to pay lawful charges, supposedly making the claim plausible.

However, the Commission has already rejected OOCL’s theory that petitioning conduct could be pled as an unjust or unfair device. Further, SEA’s notice to OOCL that it challenged certain demurrage and detention charges and would refer its dispute to the Commission is the opposite of “knowing and willful” wrongdoing.

As explained more fully in the Motion, to plead that element, OOCL would have had to allege facts showing SEA knew its conduct was wrongful and proceeded anyway. SEA’s conduct is consistent with the resolution of a good faith dispute: payment of invoices, written protest, a demand for refunds of charges believed unlawful, and notice of intent to pursue statutory remedies at the Commission. OOCL pleads no other facts about SEA’s conduct that would bridge the gap from disagreement to deception.

Thus, the AMCC misrepresents SEA's demand for a refund –a good faith assertion of its rights under the law – as “knowing and willing conduct” engaged in to violate the law. Respondents’ do not allege any other facts concerning SEA’s conduct in support of this element of its claim.

2. *OOCL does not plead fraud or concealment by SEA.*

The Commission has already confirmed in this matter that the critical “unjust or unfair device or means” element of section 41102(a) requires conduct that involves fraud or concealment as a factual matter.” *Samsung Electronics America, Inc*, 2025 WL 2207363, at *5 (FMC Jul. 30, 2025). The Opposition says it heeds that guidance by pivoting from SEA’s filing of a complaint with the Commission to now allege a different understanding of the legal terms of the service agreement at the time of contract formation. However, the allegations around the service contract formation are addressed to SEC, not SEA.

Specifically, the AMCC attributes the negotiations and alleged inducements to SEC and then tries to include those same allegations against SEA by way of SEA having been identified as an affiliate of SEC with authority to move cargo under the contracts. That does not allege “fraud” by SEA. Further, OOCL does not provide any quoted language from the service contracts that SEA supposedly “rejected” – not surprising, since OOCL negotiated the service contracts with SEC, not SEA. Indeed, all allegations raised as to specific conduct related to the formation of the service contracts are made against SEC alone (AMCC ¶¶ 8, 9, 12, 14, 20, 27). That is not sufficient to state a claim against SEA.

3. *OOCL misunderstands China United Lines and its relationship to unjust or unfair device*

Respondents’ assert that the facts alleged in the Counterclaim are akin to the conduct alleged within several different section 41102(a) decisions. In particular, the Opposition asserts

that the Counterclaim “posits a situation, similar to the one in *China United Lines*,” where Samsung and SEA “misled OOCL at the outset” as to their acceptance of the provisions in the Service Contracts and asserts that concealed intent can constitute an unfair or unjust device. However, the facts of that case are easily distinguishable.

In *China United Lines*, it was alleged that after consistently falling short of its capacity obligations under the service contract, Amazon prematurely terminated “for convenience” by written notice and with agreement to pay the associated liquidated damages. *China United Lines, Ltd. v. Amazon.com Services LLC* 2025 WL 1675842, at *1 (ALJ Jun. 6, 2025). The complaint alleged further that Amazon subsequently revised its termination to one “for cause”, to avoid payment of the liquidated damages owed to the complainant. The ALJ held that the claim that Amazon’s revision of its termination was an “unjust or unfair device or means” was adequately supported by the allegations of Amazon’s prior termination notice and prior agreement to pay the liquidated damages at issue. *Id.* at *8. That is clearly distinguishable from the case here where OOCL is unable to point to any change in position by SEA that would qualify as an unjust or unfair device.

The Opposition continues to inappropriately equate the allegations found in several other cases, in an effort to make out the allegations plead in the Counterclaim as offering more than they are capable.⁴ Ironically, OOCL’s reliance on these authorities in support of its AMCC functions more effectively at exposing the deficiency of facts alleged against SEA.

⁴ *Waterman Steamship Corp. v. General Foundries, Inc.* Dkt. No. 93-15, 1994 WL 279898 (FMC 1994) (Respondent allegedly stopped payment on two checks conferred for the release of the complainant possessory lien on its cargo for unpaid freight); *Shipco Transport, Inc v. Inter-Maritime Container Lines, Inc., et al.*, Dkt. No. 99-04, 2001 WL 122066 (F.M.C. Jan. 18, 2001) (respondent fraudulently misrepresented it would collect moneys owed by shippers as a freight forwarder and NVOCC for payment to the claimant for unpaid freight, resulting in the loss of claimants maritime lien on cargo released under that representation); *Global Transporte Oceanico S.A. v. Coler Ocean Independent Lines Co.*, Dkt. No. 99-14, 1999 WL 10005658 (I.D. Oct. 1, 1999) (another bad check conferred for the release of a maritime lien on cargo for unpaid freight, which was subsequently released by the complainant due to

CONCLUSION

OOCL's AMCC fares no better than its Original Counterclaim and fails to state a Section 41102(a) claim. It alleges no fraud or concealment, no shipment-specific facts, no misstatement by SEA during the formation of the service contracts, and no causal link showing SEA obtained transportation at less than applicable rates. OOCL's theory simply repackages a reparations demand and legal disagreement as deception. After ample opportunity to amend its Counterclaim, OOCL still offers only conclusions instead of factual allegations and seeks to relitigate issues already resolved, unnecessarily multiplying proceedings and driving up costs without advancing a viable claim.

For the reasons set forth in the Motion and above, pursuant to 46 C.F.R. §§ 502.70, and 502.254, Complainant SEA respectfully requests an Order dismissing with prejudice OOCL's Amended Counterclaim in its entirety and striking Respondents' prayers for a cease-and-desist order and request for attorney fees. SEA further requests that the Order grant SEA its attorneys' fees in connection with this Motion to Dismiss and grant all such other and further relief as may be just and proper.

respondent's misrepresentations of agreement pay owed freight under an installment agreement); *Seafair v. Sterling Container Line*, Dkt. No. 22-34, 2024 WL 1741926 (ALJ Apr. 15, 2024) (respondent allegedly withheld payments to complainant's destination agent despite the complainant's advancement of the fee to the carrier on the Respondent's behalf); *Tropical Shipping & Construction Co., Ltd. v. Valley Wide Produce, Inc.*, Dkt. No. 93-05, 1993 WL 285897 (ALJ Default Judgment, July 20, 1993) (Respondent misrepresented agreement to pay overdue freight under a credit agreement, induced the complainant to provide further transportation on a collect basis); *Hohenberg Bros. Co. v. FMC*, 316 F.2d 381 (D.C. Cir. 1963) (allegations involving false classification).

Dated: October 2, 2025

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ **Peter F. Black**

Peter F. Black
H. Allen Black
Imran O. Shaukat
1215 19th Street, NW
Washington, DC 20036
pblack@millsblack.com
hablack@millsblack.com
ishaukat@millsblack.com

*Counsel to Samsung
Electronics America, Inc.*

Exhibit 1

Complainant's Notice of Demand for Action Letter

October 7, 2022

SAMSUNG

Samsung Electronics America, Inc.
85 Challenger Road
Ridgefield Park, New Jersey 07660
(201) 229-4000

BY E-MAIL AND OVERNIGHT MAIL

October 7, 2022

OOCL (USA) Inc.
10913 South River Front Parkway, Suite 200
South Jordan, Utah 84095
and/or one of its affiliated companies ("OOCL")
E-mail: paul.devine@oocl.com; richard.nickerson@oocl.com; impwest@oocl.com

NOTICE OF DEMAND FOR ACTION

Dear Sir or Madam:

As you know, Samsung Electronics America, Inc. ("Samsung") is a recipient of import containerized cargo moving under "store-door" terms with OOCL and has received numerous invoices and other communications from OOCL demanding charges for demurrage, detention, handling, and/or storage ("Fees") and threatening delays and other actions if such Fees are not paid.

Although Fees should not have been charged to Samsung for transporting Samsung's containers to the designated inland locations because OOCL was responsible for obtaining all necessary resources therefor under the store-door terms, Samsung has been forced to pay for these unjust and unreasonable Fees under OOCL's threat of holding up the release of containers and threats of other punitive actions. Per the Shipping Act of 1984, 46 U.S.C. § 40101, *et seq.*, the foregoing is a clear violation of the Shipping Act, including 46 U.S.C. § 41102(c).

Furthermore, even if Samsung was responsible for the Fees or the delivery terms were not "store-door," OOCL was required, but failed to provide, adequate billing information and/or invoices relating to the Fees that would have allowed Samsung to meaningfully understand the Fees. OOCL also failed to provide adequate means to dispute such Fees, and, in fact, repeatedly rejected any attempt by Samsung to discuss this matter with OOCL's billing coordinators. OOCL does not have an unfettered right to take advantage of inland transportation and port congestion challenges to unilaterally shift its common carrier inland transportation responsibilities or costs onto Samsung.

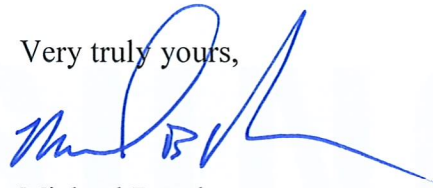
OOCL's failures constitute clear violations of the Shipping Act, including 46 U.S.C. § 41102(c) and the newly promulgated provisions in § 41104(a). Indeed, OOCL's unfair and unreasonable policy with respect to unsubstantiated and uncontestable Fees was a key motivation

behind the Ocean Shipping Reform Act of 2022 (Public Law 117-146) (“OSRA”) and in particular, Section 7 thereof.

The Fees wrongfully imposed on Samsung since 2020 have amounted to more than **eleven million dollars (\$11,000,000)**, based on available data on posted charges as of Q1 2022, and are continuing to be assessed without any justification.¹ Samsung protests the unjust, unreasonable and unlawful Fees and intends to seek reparations before the Federal Maritime Commission (“FMC”) for the entire amount of the Fees paid pursuant to 46 U.S.C. § 41305, along with interest pursuant to 46 U.S.C. § 41305(a) and attorneys’ fees pursuant to 46 U.S.C. § 41305(e), unless OOCL agrees to immediately refund all such Fees paid by Samsung. To the extent Samsung is forced to pay additional Fees going forward, **all such payments are under protest and under reservation of all rights**, including the right to recover and to challenge the validity and reasonableness of such Fees.

Notwithstanding the foregoing, Samsung prefers to reach a private and amicable resolution on mutually-acceptable terms. Please provide written confirmation within 2 weeks of the date of this letter to indicate OOCL’s interest in reaching a confidential settlement. If you have any questions regarding this letter, let me know.

Very truly yours,



Michael Rapske
Vice President, Logistics
Samsung Electronics America, Inc.
Tel: 972-210-5455
E-mail: m.rapske@sea.samsung.com

cc: Orient Overseas Container Line Limited (“OOCL”) (*by overnight mail*)
31/F, Harbour Centre, 25 Harbour Road, Wanchai, Hong Kong

Ken Murata, General Counsel, Samsung Electronics America, Inc.
E-mail: ken.murata@sea.samsung.com

¹ Samsung is currently evaluating the data related to charges posted after Q1 2022 and expects that the total amount of the Fees will materially increase for charges posted in and after Q2 2022, and will continue to evaluate this data going forward.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents
 - a. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - b. Kaya C. Massey
KMassey@JeffreyFenneman.com
 - c. Nicholas L. Webb
NWebb@JeffreyFenneman.com
4. Cozen O'Connor
Counsel for Respondents
 - a. Wayne R. Rohde
wrohde@cozen.com
 - b. Christopher Raleigh
craleigh@cozen.com
 - c. Rachel Schwartz
rschwartz@cozen.com
 - d. Kathryn Sobotta
ksobotta@cozen.com
5. Hohenstein & Parkinson, LLP
Counsel for Third-Party Respondent
 - a. James H. Hohenstein
jim.hohenstein@hplawnyc.com

Dated: October 2, 2025

By: /s/ **Peter F. Black**

Peter F. Black
MILLS BLACK LLP

*Counsel to Samsung
Electronics America, Inc.*